

22STCV40879 22STCV40879

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-09

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Case Number: 22STCV40879 Hearing Date: July 9, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 9, 2026

Case Name: Doe v. Roe, et al.

Case No.: 22STCV40879

Matter: Motion to Seal

Ruling: The Motion is granted.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

On February 20, 2025, Plaintiff Jane Doe filed a First Amended Complaint against Defendants Jane Roe and LAUSD for (1) childhood sexual abuse, (2) negligent hiring, supervision, and retention, and (3) negligence.

Plaintiff now seeks to seal her deposition testimony, which was attached to Defendants's summary judgment motion. Plaintiff contends that this exhibit "contains references to confidential information related to alleged abuse of plaintiff when she was a minor. Because the Exhibit contains information that the parties have designated as 'Confidential' or which may otherwise contain non-public, sensitive, or confidential or proprietary information, including private information related to third parties, the Exhibit should be filed under seal."

Unless confidentiality is required by law, court records are presumed to be open to public review. (Cal. Rules of Court 2.550(c); see also Cal. Const., art. I, § 3, subd. (b)(1) ["The people have the right of access to information concerning the conduct of the people's business"].) "The court may order that a record be filed under seal only if it expressly finds facts that establish: (1) There exists an overriding interest that overcomes the right of public access to the record; (2) The overriding interest supports sealing the record; (3) A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed; (4) The proposed sealing is narrowly tailored; and (5) No less restrictive means exist to achieve the overriding interest." (Cal. Rules of Court, rule 2.550(d); see also NBC Subsidiary (KNBC-TV), Inc. v. Superior Court (1999) 20 Cal.4th 1178, 1217-1218.)

The Court finds that there is an overriding interest in the documents due to allegations of sexual assault; this interest supports a sealing order; if there is no sealing, Plaintiff or third-parties could suffer harm from the public; the proposed sealing is narrowly tailored; and there are no less restrictive means to achieve the interest.

The Motion to Seal is granted.

Moving party to give notice.